

THE IMPLEMENTATION OF THE CONCILIATION-MEDIATION PROCEDURE VIA INTERNET

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Abstract: The article examines the issues of definitions of conciliation -mediation procedure and online dispute resolution. In the science of labor law, the concept of conciliation and mediation has not been adequately developed, which naturally causes problems in the application of the relevant norms of the Labor Code, other regulatory legal acts containing labor law norms, collective agreements, social partnership agreements, and local regulations. Usage of online platforms would have made resolution of collective dispute easier.

Key words: conciliation-mediation procedure, collective labor dispute, online dispute resolution.

Conciliation procedures - consideration of a collective labor dispute for the purpose of its resolution by a conciliation commission, with the participation of a mediator and (or) in labor arbitration.

In accordance with *Article 570 Labor Code* of Republic of Uzbekistan, conciliation and mediation procedures represent a consistent resolution (settlement) of a collective labor dispute, initially in a conciliation commission, and if no agreement is reached in it, in labor arbitration, as well as by mutual agreement of the parties using the mediation procedure¹.

In practice, the main methods of dispute resolution used in many countries of the world and offered by the relevant ILO instruments are:

- conciliation/mediation (which may or may not vary);
- arbitration; and
- judicial review.

All of these methods are usually prescribed by law and involve the participation of independent and impartial third parties to assist in resolving disputes. Conciliation/mediation and arbitration procedures are sometimes also specified in collective agreements.²

The rapid growth of e-commerce has led to an increase in long-distance interactions. Consequently, disputes arise between parties located far from each other. Litigation and enforcement of decisions on such disputes through the courts can be very expensive due to the significant costs associated with travel, hiring local lawyers, and translation of documentation. Resolving a legal dispute is a complex form of managing and processing information, therefore, the use of information technology to resolve a legal dispute becomes inevitable. The advantage of online dispute resolution is that it allows disputes to be resolved at a distance without the physical presence of the parties. With disputes related to e-commerce, the question arises of determining the appropriate form of resolution. Online dispute resolution (ODR) mechanisms offer a means that is convenient and accessible to each party to avoid disputes, costs and ambiguities. Consequently, as parties use online

¹ Labor Code of the Republic of Uzbekistan

² https://www.ilo.org/static/russian/dialogue/ifpdial/llg/ch4/index.htm#note_1

technologies to conduct e-commerce, they expect that dispute resolution in this area will also be facilitated through them. The speed and convenience of online technologies open up great opportunities for ODR.

Online dispute resolution is the resolution of disputes using information technology at a distance, usually via the Internet.

The term **online** refers to communication through electronic means, particularly the Internet. Online disputes are any disputes that arise through (or from) online communications. ODR can be carried out via e-mail, online platforms, online chats, video conference. Online Dispute Resolution removes physical barriers. It allows parties located in different cities and countries to meet in one place without travel or expense to resolve a dispute.

Therefore, Online Dispute Resolution saves time and financial resources of the parties. In this way both parties employers and employees do not waste time can find solution in a short time.

However, there are some difficulties in using Online Dispute Resolution. H. Alvaro identifies the following problems: technical, legal, social and political. Technical difficulties include the fact that not everyone is yet comfortable using the Internet, with the exception of browsing websites. Online Dispute Resolution requires each disputant to be able to use and trust sophisticated web technology to protect private and confidential information. But, today this is difficult to achieve. The development and spread of the Internet varies from one state to another, which creates difficulties in the use of Online Dispute Resolution in resolving international commercial disputes.

There are also purely technical difficulties. To date, there are no technical Online Dispute Resolution standards. The rapid development of technology makes communication and data sharing a difficult task to achieve. There are also legal difficulties that come from a basic mistrust of the Internet because it develops too quickly for society to absorb it. There are many questions: the validity and authenticity of the signatures; the validity of the transfer of documents; confirmation of transmission and acceptance of documents; security of communications, etc.

There are also ambiguities regarding the legal force of the decision, its recognition and execution. Regarding social and political difficulties, in many countries Online Dispute Resolution is not yet part of the legal and business culture, and many are still not familiar with Online Dispute Resolution. So far, many countries lack the foundations for successful development of Online Dispute Resolution. Today, sites that provide Online Dispute Resolution services are focused primarily on consumer and insurance disputes. Let's look at some sites that provide ODR services. Today, the sale of domain names is turning into a highly profitable business. For example, in February 2008, the British travel company, owner of the website cruise.co.uk, purchased the plural version of the domain cruises.co.uk, paying 560 thousand pounds (1.1 million US dollars). Interestingly, the company already owned the domain cruise.co.uk, so it turns out that a million dollars was "laid out" for just one letter. The company's CEO said the move was a necessary step to help it remain a leader in ocean liner services. He said that the word "cruises" ranks higher on Google than "cruise", so now the company will not lose customers³.

³ Масадыков. Ш.М – Проблемы правового регулирования медиации

To conclude, in the Republic of Uzbekistan there are sufficient information and technological capabilities for the use of mediation in resolving disputes via the Internet. This is supported by legislative acts regulating this area, including the laws of the Republic of Uzbekistan “On Electronic Document Flow”, “On Electronic Digital Signature”, “On Electronic Commerce”. It should be noted that Online Dispute Resolution has great prospects in the future due to its advantages. It takes dispute resolution to a whole new level through the use of information technology. Online dispute resolution creates a wide range of opportunities for resolving disputes arising in various areas, particularly in e-commerce.

Based on the priorities of the "Digital Uzbekistan - 2030" strategy and the concept of raising legal culture in society, a smart mobile application called "Collective Dispute" (iPad, Web, iOS, Android) is proposed to be developed and integrated into the website of the Ministry of Employment and Labor Relations of the Republic of Uzbekistan (<https://mehnat.uz>). With the help of this program, employers and employees can independently resolve their collective disputes on the basis of conciliation without spending a lot of time and money. This system is implemented through artificial intelligence, as well as through specially trained mediators. This system serves as an important program for the protection of labor rights.

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